Montgomery County District Court

Cause No. 2024-CV-0009

Brian Williams, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 31, 2024
Plaintiff's counsel:	Henry Schwartz, Conley & Stephenson Law Group

Parties

Plaintiff Brian Williams is an individual residing in Texas who was the operator of a vehicle involved in the collision described below. Defendant is an automobile liability insurer authorized to conduct business in the State of Texas, which issued the policy covering the other vehicle involved in the collision and which is responsible for the claims handling and coverage obligations arising from that policy.

Facts

On August 24, 2023, Plaintiff was lawfully stopped at a controlled intersection in Conroe, Texas, and proceeded to turn left in accordance with the traffic signal and right of way. As Plaintiff's vehicle completed the turn, the insured driver of the other vehicle struck the side of Plaintiff's vehicle with force. The impact caused Plaintiff's vehicle to lurch and Plaintiff's left knee to strike the interior of the vehicle. Plaintiff reported the collision to Defendant and submitted all documentation requested in support of a claim under the applicable liability coverage.

Negligence

The insured driver owed Plaintiff a duty to operate the vehicle with reasonable care, to keep a proper lookout, to yield the right of way, and to comply with the Texas Transportation Code. The insured driver breached that duty by failing to yield, failing to maintain a proper lookout, and proceeding into the intersection unsafely. Defendant, having issued the policy and undertaken to evaluate and resolve the claim, owed Plaintiff a duty to investigate the claim in good faith and to attempt in good faith to effectuate a fair settlement once liability became reasonably clear. Defendant has failed to do so.

Damages

As a direct and proximate result of the collision, Plaintiff sustained a knee injury requiring medical evaluation, imaging, and ongoing treatment. Plaintiff has incurred medical expenses, lost time from work, and pain, suffering, and mental anguish, and will likely incur additional expenses in the future. Plaintiff seeks recovery of damages in an amount within the jurisdictional limits of this Court, presently demanded in the sum of $71,000.00, together with pre-judgment and post-judgment interest, costs of court, and such other relief to which Plaintiff may be entitled.